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HUM-375 Critical Theory
28 April 2026

The Idea of Poetic Justice in the Justice System

When I first encountered Foucault, I found myself questioning assumptions I had taken for granted about the justice system and the idea I had formed of poetic justice. I had always imagined punishment as a straightforward sequence: someone breaks a rule, is removed from society, punished, and then order is restored. It felt natural to think that suffering simply follows wrongdoing. Reading *Discipline and Punish: The Birth of the Prison*, however, disrupted this view. Foucault does not just critique the harshness of punishment, but interrogates the very structure of its underpinning power: how it operates less through visible force and more through a sense of inevitability.¹ This forced me to reconsider whether punishment is as fair or as necessary as it appears to be. That which I had seen as a natural consequence of one's actions, now seemed to conceal the institutional processes that actually define and legitimize punishment.

As I reevaluated my assumptions, I realized that the sense of inevitability surrounding punishment is what makes poetic justice seem so compelling. Foucault, though, reveals how deceptive this can be. Punishment is presented as if it naturally follows crime, but his analysis made me see that it is anything but automatic. Instead, it is constructed by institutions, laws, legal systems, law enforcement, labor systems, and surveillance. Foucault points out that earlier reformers wanted punishment to be so predictable that “one no longer sees man committing violence on man.”² This predictability masks the underlying power structures with a veneer of moral order. What strikes me is that the appeal of poetic justice depends on hiding the choices and frameworks that actually make punishment possible.

Extending Foucault's critique, he goes further by showing that prison does not just punish a specific crime; it also creates the category of the delinquent. He writes that “the delinquent is to be distinguished from the offender” because “it is not so much his act as his life that is relevant in characterizing him.”³ The justice system asks not only, “What did you do?” but also, “What kind of person are you?” This is why Foucault says that “the legal punishment bears upon an act; the punitive

¹ Michel Foucault, *Discipline and Punish: The Birth of the Prison*, trans. Alan Sheridan, 2nd Vintage Books ed. (New York: Vintage Books, 1995), 9.

² Jean-Paul Marat, *Plan de législation criminelle*, 33, quoted in Foucault, *Discipline and Punish*, 105.

³ Foucault, *Discipline and Punish*, 251.

technique on a life.”⁴ It constructs a narrative around the individual, taking into account factors such as childhood, habits, class, work ethic, and perceived risk. This shift is important because it means people are no longer held solely responsible for their actions but are redefined as a certain type of person based on their history.

Thinking through this, I started to notice how the label of “delinquent” extends far beyond the legal system. It shapes how people are seen, marking someone as having failed to become useful, disciplined, employable, or respectable. Foucault observes that disciplinary institutions do more than simply punish; they organize, classify, train, and monitor individuals, keeping records that follow people long after, sometimes for a single mistake. I recognize this logic in the persistence of school disciplinary records or employment background checks: documents that can continue to influence how someone is perceived. In this sense, prison is not an isolated institution but a concentrated example of the broader disciplinary logic that operates throughout society.

This perspective relates back to my ongoing questions about alienated labor. I see now that the justice system does more than punish crime; it participates in defining who in society is considered useful, disciplined, employable, or who has failed to meet those standards. Foucault’s analysis leads me to view prison as just one part of a larger infrastructure that legitimizes this kind of human sorting. In the chapter “*Docile Bodies*,” he argues that discipline produces bodies that are more obedient as they become more useful, thereby increasing economic value while reducing political agency.⁵ Because of this, I find it difficult to separate the justice system from everyday life. Whether we are workers, students, prisoners, or so-called law-abiding citizens, we are all measured by how well we follow schedules, meet expectations, remain visible, and deliver results. The problem is not only that prison separates people from society; it is that society itself already operates according to the same logic. The justice system simply makes this cultural construct more visible.

Foucault complicates punishment: it is not only repression or exclusion. He warns that power does not just exclude or repress; “power produces; it produces reality; it produces domains of objects and rituals of truth.”⁶ Punitive systems generate knowledge, organize people, separate groups, and reinforce power. Even if prison does not reduce crime, it produces people labeled as delinquents. Foucault suggests prison “succeeded extremely well in producing delinquency.”⁷ What seems like failure is part of its function, marking and monitoring certain people as examples. Poetic justice encourages viewing suffering

⁴ Foucault, *Discipline and Punish*, 251.

⁵ Foucault, *Discipline and Punish*, 138.

⁶ Foucault, *Discipline and Punish*, 194.

⁷ Foucault, *Discipline and Punish*, 277.

as deserved, dividing people into those deemed deserving and those deemed not. Foucault urges us to question this division. If society creates unequal conditions, punishment does more than balance: it manages and organizes who suffers and the reasons why.

Foucault reveals this idea in his analysis of nineteenth-century workers' newspapers. These papers challenged the idea that delinquency stems from vice. Instead, they traced "the origin of delinquency not to the individual criminal," but to society. This includes the "bad social organization," poverty, poor education, untapped abilities, and early labor.⁸ This directly links prison to labor alienation. The delinquent is not simply defiant but may also suffer from broken ties to work, education, and social connections.

Foucault also shows that not all illegality is equal. Working-class crime becomes highly visible, while "delinquency from above" is tolerated or concealed. He writes, "delinquency of wealth" may be tolerated by law and handled with "judicial lenience and press discretion".⁹ Society tends to see lower-class crime as moral failure, but elite harm as ambition or cleverness. The issue is not innate criminality, but that power determines which social harms are visible as crime and which are hidden.

With this in mind, I have started to see prison as an infrastructure that generates alienation. It separates people, but it also allows society to avoid confronting its own responsibility for the roots of crime. Instead of examining how labor, poverty, or education shape outcomes, we tend to blame individuals. Poetic justice provides a sense of closure, but it does so by reframing social issues as matters of fate, focusing on controlling individuals rather than addressing underlying causes. I noticed this type of thinking in my own experience with a group project: when my partners struggled as a result of applying little effort, I felt a sense of poetic justice as I finished early. But reflecting on Foucault's analysis, I realized that a successful outcome was more about preparation, communication, and experience than any kind of moral reckoning.

This has impacted my thought process as Foucault has made me reconsider why punishment or embarrassment can sometimes feel satisfying. The sense of "poetic justice" echoes the logic of the prison/justice system, encouraging me to sort people into categories: responsible or not, deserving or not. Foucault's reasoning challenges this entire way of thinking, showing how modern power makes these divisions seem natural.

The phrase "everything happens for a reason" takes on new significance in this context. People

⁸ *L'Humanitaire*, August 1841, quoted in Foucault, *Discipline and Punish*, 287.

⁹ Foucault, *Discipline and Punish*, 287–88.

often use it to assign meaning to suffering. However, Foucault would prompt me to consider who benefits from the moral explanation of suffering. The justice system transforms punishment into a mechanism for producing meaning. It communicates to society that the prisoner's suffering is self-explanatory: he is present because he belongs there. Yet, as Foucault demonstrates, the prison does not merely reveal who deserves punishment; it actively constructs the category of the punishable person. This is why his claim that the "carceral naturalizes the legal power to punish" matters so much: prison not only enforces the law; it makes the act of punishing appear normal, technical, and morally acceptable.¹⁰ In the end, Foucault leaves me with the urgent question of how we might challenge systems that justify suffering, and whether real justice can be achieved without first exposing the foundations that make punishment seem inevitable.

"An eye for an eye" does not constitute poetic justice. It is a human convention for measuring retaliation, based on the assumption that punishment can restore balance. Foucault demonstrates that modern punishment is far more complex: discipline produces "docile bodies" by increasing the body's usefulness "in economic terms" while diminishing it "in political terms of obedience."¹¹ The prison operates within this economy, not outside it. It is embedded in systems of discipline, productivity, hierarchy, and alienated labor.

What I conclude from Foucault's ideas is that the justice system appears to deliver poetic justice, but in reality, it conceals how society itself contributes to the creation of delinquency. Suffering that is rooted in class, labor exclusion, or institutional failure is reframed as personal guilt. We are told that people get what they deserve, while the systems that make some people seemingly more deserving of punishment remain hidden. Foucault's propositions help to prevent me from accepting that narrative too easily. He does not suggest abandoning justice, but he does push me to question the satisfaction I feel when punishment seems morally justified. For me, genuine justice can only begin when we stop solely equating punishment with fairness and start examining the underlying structure that produces suffering.

¹⁰ Foucault, *Discipline and Punish*, 303.

¹¹ Foucault, *Discipline and Punish*, 138.

Works Cited

Foucault, Michel. *Discipline and Punish: The Birth of the Prison*. Translated by Alan Sheridan. 2nd Vintage Books ed. New York: Vintage Books, 1995.

Grammarly was also used to polish this response paper.